

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4341

By: Moore

AS INTRODUCED

An Act relating to children; amending 10A O.S. 2021, Section 1-8-102, as amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-102), which relates to court-appointed special advocates; modifying education and training course standards; modifying background check standards; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-8-102, as amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-102), is amended to read as follows:

Section 1-8-102. A. Any court-appointed special advocate (CASA) available for appointment pursuant to the Oklahoma Children's Code or the Oklahoma Juvenile Code shall complete education and training courses in accordance with ~~national and~~ Oklahoma CASA standards.

B. No court-appointed special advocate shall be assigned a case before:

1        1. Completing a training program in compliance with ~~nationally~~  
2 documented Court-Appointed Special Advocate standards.

3 Documentation of training shall be submitted annually by local  
4 court-appointed special advocate programs to the Oklahoma Court-  
5 Appointed Special Advocate Association; and

6        2. Being approved by the local court-appointed special advocate  
7 program, which will include appropriate criminal background checks  
8 as provided in subsection C of this section.

9        C. 1. Notwithstanding any other provision of law, each local  
10 court-appointed special advocate program shall require for any  
11 person making application to become a court-appointed special  
12 advocate volunteer or to be employed by the local court-appointed  
13 special advocate program:

14            a. a child welfare records search conducted by the  
15                Department of Human Services, which shall consist of a  
16                search of the Child Abuse and Neglect Information  
17                System maintained by the Department of Human Services  
18                for review by authorized entities,

19            b. a criminal history records search conducted by the  
20                Oklahoma State Bureau of Investigation, and

21            c. any other background check meeting the requirements as  
22                set forth in Oklahoma Court-Appointed Special Advocate  
23                Association state ~~or national~~ standards for local  
24                programs.

1        2. If the prospective court-appointed special advocate  
2 volunteer or employee of the local court-appointed special advocate  
3 program has lived in Oklahoma for less than one (1) year, a criminal  
4 history records search shall also be obtained from the criminal  
5 history state repository of the previous state of residence.

6        D. 1. Any person participating in a judicial proceeding as a  
7 court-appointed special advocate shall be presumed prima facie to be  
8 acting in good faith and in so doing shall be immune from any civil  
9 liability that otherwise might be incurred or imposed.

10       2. Any person serving in a management position of a court-  
11 appointed special advocate organization, including a member of the  
12 Board of Directors acting in good faith, shall be immune from any  
13 civil liability or any vicarious liability for the negligence of any  
14 court-appointed special advocate organization advocates, managers,  
15 or directors.

16       SECTION 2. This act shall become effective November 1, 2026.

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